

to stand possessed of it upon the new trusts (*e*), and, of course, it has been considered quite immaterial whether the settlor selected new trustees or was content with the original trustees.

12. **Assignment to a stranger for his own benefit.**—In other cases the owner of an equitable interest has simply assigned it to a stranger for the stranger's own benefit (*f*), which also in principle is the same as *Sloane v. Cadogan*, for there can be no difference between the gift of an equitable interest to A. himself and the gift of it to B. in trust for A.

[*74] * 13. **Case of particular mode intended, but not effectual.**—If the settlor intend to make the settlement in one particular mode, but which fails, the Court will not go out of its way to give effect to it by applying another mode; as if the settlement be intended to be made by transfer of the legal estate, the Court will not hold such intended but effectual transfer to operate as a declaration of trust, for then every imperfect instrument would be made effectual by being converted into a perfect trust (*a*).

14. **Meek v. Kettlewell.**—In a case (*b*) heard before Sir J. Wigram, and affirmed by Lord Lyndhurst (*c*), it was held that a voluntary assignment of a mere *expectancy* (as of an heir or next of kin) in an equitable interest, and *not commu-*

to the trustee, and the trustee should accept the notice and act upon it, by paying the interest and dividends of the trust property to the assignee during the life of the assignor, and with his consent, it might be difficult for the executor or administrator of the assignor afterwards to contend that the gift of the property was not perfect in equity," 1 Hare, 471. The Vice-Chancellor here enumerates all the safeguards and confirmatory acts of which the transaction was capable, but it must not be inferred that if some of these were wanting, the trust would not be supported.

(*e*) *Rycroft v. Christy*, 3 Beav. 238; *M'Fadden v. Jenkyns*, 1 Hare, 458; 1 Phill. 153; *Lamb v. Orton*, 1 Dr. & Sm. 125.

(*f*) *Cotteen v. Missing*, 1 Mad. 176; *Collinson v. Patrick*, 2 Keen, 123; *Wilcocks v. Hannyngton*, 5 Ir. Ch. Rep. 38; and see *Godsall v. Webb*, 2 Keen, 99.

(*a*) *Milroy v. Lord*, 8 Jur. N. S. 809; 4 De G. F. & J. 274, *per* L. J. Turner; *Richards v. Delbridge*, 18 L. R. Eq. 11; *Heartley v. Nicholson*, 19 L. R. Eq. 233; [*Bottle v. Knockner*, 46 L. J. N. S. Ch. 159; *Cross v. Cross*, 1 L. R. Ir. 389; 3 L. R. Ir. 342; *Hayes v. Alliance Assurance Co.* 8 L. R. Ir. 149; *West v. West*, 9 L. R. Ir. 121; *Lee v. Magrath*, 10 L. R. Ir. 313.]

(*b*) *Meek v. Kettlewell*, 1 Hare, 464. See observations upon this case in *Penfold v. Mould*, 4 L. R. Eq. 564.

(*c*) 1 Ph. 342.